

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL ITEMS <i>OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, & 30</i>				1. REQUISITION NUMBER NFFM7000-20-00327		PAGE 1 OF 32	
2. CONTRACT NO.		3. AWARD/EFFECTIVE DATE		4. ORDER NUMBER		5. SOLICITATION NUMBER 1305M2-20-Q-NFFM-0069	
6. SOLICITATION ISSUE DATE MAR 18, 2020		7. FOR SOLICITATION INFORMATION CALL: →		a. NAME Amy McLiverty		b. TELEPHONE NUMBER (no collect calls) (757) 441-3426	
9. ISSUED BY National Oceanic and Atmospheric Administration Eastern Acquisition Division 200 Granby Street, Suite 815 Norfolk, VA 23510 E-mail: Amy.L.McLiverty@noaa.gov				10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☒ SET ASIDE: 100 % FOR: ☒ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) ELIGIBLE UNDER THE WOMEN- OWNED SMALL BUSINESS PROGRAM ☐ HUBZONE SMALL BUSINESS ☐ EDWOSB ☐ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS ☐ 8(A) NAICS: 541611 SIZE STANDARD: \$16.5M			
11. DELIVERY FOR FOB DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE		12. DISCOUNT TERMS		13a. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 700)		13b. RATING DO-A3	
				14. METHOD OF SOLICITATION ☒ RFQ ☐ IFB ☐ RFP			
15. DELIVER TO See Description of Supplies/Services				16. ADMINISTERED BY See Block 9			
17a. CONTRACTOR/ CAGE CODE OFFEROR DUNS No. TELEPHONE NO: FAX NO:				18a. PAYMENT WILL BE MADE BY CODE Department of Commerce NOAA Finance Office, Room 1204 20020 Century Blvd Germantown, MD 20874			
☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER				18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☒ SEE ADDENDUM			
19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES			21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	Reference Attachment A-Schedule of Items and Prices (Use Reverse and/or Attach Additional Sheets as Necessary)						
25. ACCOUNTING AND APPROPRIATION DATA						26. TOTAL AWARD AMOUNT (FOR GOVT USE ONLY)	
☒ 27a. SOLICITATION INCORPORATES BY REFERENCE FAR 52.212-1, 52.212-4. FAR 52.212-3 & 52.212-5 ARE ATTACHED. ADDENDA ☒ ARE ☐ ARE NOT ATTACHED.							
☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4, FAR 52.212-5 IS ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED.							
☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN 2 COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED HEREIN.				☐ 29. AWARD OF CONTRACT: REFERENCE OFFER DATED . YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:			
30a. SIGNATURE OF OFFEROR/CONTRACTOR				31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)			
30b. NAME AND TITLE OF SIGNER		30c. DATE SIGNED		31b. NAME OF CONTRACTING OFFICER		31c. DATE SIGNED	

AUTHORIZED FOR LOCAL REPRODUCTION
PREVIOUS EDITION IS NOT USABLE

STANDARD FORM 1449 (REV. 2/2012)
PRESCRIBED BY GSA – FAR (48 CFR) 53.212

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	SECTION B: Continuation of SF 1449 Prices quoted herein shall be in accordance with vendors' established and applicable General Services Administration (GSA) Federal Supply Schedule (FSS) contract(s). FSS contracts that are applicable are FSS 738 X Human Capital Management and Administrative Support Services, Special Item Number (SIN) 595-11, Administrative Support Services. The FSS contract number(s) from which prices are quoted is/are: _____. Provide Northeast Fisheries Science Center (NEFSC) Administrative Support Services in accordance with the attached Performance Work Statement (PWS). The Contractor shall provide prices in the Schedule of Supplies/Services and Price/Costs Table provided at Attachment A. *Vendors are requested to re-certify their GSA contract prior to submitting a quote.				Estimated Ceiling: <u>\$To be determined</u>

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED ☐ INSPECTED ☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED:

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE		32c. DATE	32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE	
32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE			32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE	
			32g. E-MAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE	
33. SHIP NUMBER	34. VOUCHER NUMBER	35. AMOUNT VERIFIED CORRECT FOR	36. PAYMENT ☐ COMPLETE ☐ PARTIAL ☐ FINAL	37. CHECK NUMBER
☐ PARTIAL ☐ FINAL				
38. S/R ACCOUNT NUMBER	39. S/R VOUCHER NUMBER	40. PAID BY		
41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT			42 a. RECEIVED BY (<i>Print</i>)	
41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER			42b. RECEIVED AT (<i>Location</i>)	
			42c. DATE REC'D (<i>YY/MM/DD</i>)	42d. TOTAL CONTAINERS

**DEPARTMENT OF COMMERCE (DOC)
NATIONAL OCEANIC AND ATMOSPHERIC ADMINISTRATION (NOAA)
NATIONAL MARINE FISHERIES SERVICE (NMFS)
NORTHEAST FISHERIES SCIENCE CENTER (NEFSC)
ADMINISTRATIVE SUPPORT SERVICES
PERFORMANCE WORK STATEMENT**

I. INTRODUCTION

The Northeast Fisheries Science Center (NEFSC) plans, develops, and manages a multidisciplinary program of basic and applied research to better understand living marine resources of the Northeast Continental Shelf Ecosystem from the Gulf of Maine to Cape Hatteras, and the habitat quality essential for their existence and continued productivity, and describe and provide to management, industry, and the public, options for the conservation and utilization of living marine resources, and for the restoration and maintenance of marine environmental quality. The functions are carried out through the coordinated efforts of research facilities located in Connecticut, Maine, Massachusetts, New Jersey, and Rhode Island.

The Receptionist and Administrative Assistant positions require strong interpersonal skills to facilitate and handle the daily interactions with the public, external agency personnel, and internal staff. Provide technical and professional staff assistance and coordination in support of the various Administrative Services functions.

II. TASKS

NEFSC requires contractor support in the following areas:

TASK 1 – RECEPTIONIST (Main Lobby/Facility Entrance), Woods Hole, MA

The task includes the following:

- a. Providing and tracking visitor identification, badges, and parking tags.
- b. Receiving calls and faxes, distributing faxes, phone messages or calls to appropriate staff.
- c. Assisting facility manager with responses to telephone trouble calls.
- d. Managing Laboratory mailroom, incoming and outgoing USPS, courier, and commercially delivered letters and packages.
- e. Performing office duties including maintaining visitor logs, vehicle lists and reservations, photocopying, word processing, scanning, shredding and other clerical tasks
- f. Tracking keys for government vehicles provided for general staff use, ensuring that keys are returned on time and available for the next user.
- g. Maintaining neat, complete, legible and up-to-date telephone, mailbox, and vehicle lists.
- h. Providing general backup administrative duties to the Administrative Support staff as needed
- i. Proficiency with Microsoft Office Suite products.
- j. Dealing gracefully with a diverse public and co-workers in person, in writing, and by phone.
- k. Maintaining poise and self-control under stress and in emergencies.
- l. Display professional appearance/dress code, friendly/welcoming personality, positive attitude, politeness and avoid office scuttlebutt/gossip.

Experience/Education

The Contractor shall provide qualified individuals with sufficient education, training, and experience to adequately maintain the quality standards at an acceptable level that is consistent with identified standards cited in this contract.

The Contractor, through innovation, training, or other means, shall perform the required services in order to meet the quality and performance standards to achieve desired results.

General Description:

Minimum one (1) year of relevant experience, with up to three (3) years total relevant experience.

TASK 2 – GREETER/RECEPTIONIST for Aquarium, Woods Hole, MA

The task includes the following:

- a. Greet visitors and maintain visitor log.
- b. Receiving calls and faxes, distributing faxes, phone messages or calls to appropriate staff.
- c. Manage various customers and greet everyone politely, administer all inquiries and assist in any special request of guests.
- d. Maintaining poise and self-control under stress and in emergencies.
- e. Display professional appearance/dress code, friendly/welcoming personality, positive attitude, and politeness.

Experience/Education

The Contractor shall provide qualified individuals with sufficient education, training, and experience to adequately maintain the quality standards at an acceptable level that is consistent with identified standards cited in this contract.

The Contractor, through innovation, training, or other means, shall perform the required services in order to meet the quality and performance standards to achieve desired results.

General Description:

Minimum one (1) year of relevant experience.

TASK 3 – ADMINISTRATIVE ASSISTANT, various NEFSC locations

TASK 3A - ADMINISTRATIVE ASSISTANT Level I

The task may include the following:

- a. Answer phones, take messages, receive visitors, provide information, and referring calls or visitors to others as appropriate. Route communications to appropriate staff.
- b. Mailing/Shipping activities - Receives, sorts, routes and distributes incoming mail, packages, and correspondence to staff. Mails and ships (US Postal, UPS, Fed-Ex). Sends, receives, and distributes electronic mail and telephonic facsimile (FAX) documents.
- c. Time and Attendance activities - Timekeeper for Task ensuring proper signatures and maintaining files within web-based system and processing staff timekeeping records accurately on a biweekly basis and tracking telework hours.

- d. Travel activities - Working with staff to plan all travel, prepare travel authorizations, and review/prepare all domestic & foreign travel vouchers utilizing NOAA's travel database system and troubleshooting travel and routing issues.
- e. Prepare purchase requests via the CSuite system to be shared and approved by Federal staff.
- f. Manage service calls on equipment as necessary.
- g. Maintaining an employee emergency contact list and assist Program staff with IRIS emergency notification system as necessary and applicable.
- h. Maintaining electronic and paper files for Program staff as necessary.
- i. Work effectively using IT resources, follow applicable IT policies and procedures such as security and appropriate use policies.
- j. Foster a safe working environment for all employees through an ongoing focus on safety and health issues. Successfully complete approved workplace safety training. Ensure that any unsafe conditions in the workplace are brought to the attention of management in an expedient manner.
- k. Complete NOAA or Task related Training as required or assigned in a timely manner within requested deadlines
- l. Format letters, reports, personnel forms, etc. using various types of software.
- m. Attend staff meetings, as necessary, take and distribute official meeting minutes, assist in assigning and tracking action items as needed.
- n. Performing other administrative duties as needed to support program operations.
- o. Display professional appearance/dress code, friendly/welcoming personality, positive attitude, politeness and avoid office scuttlebutt/gossip.

TASK 3B - ADMINISTRATIVE ASSISTANT Level II

The task may include the following:

- a. Answer phones, take messages, receive visitors, provide information, and refer calls or visitors to others as appropriate. Route communications to appropriate staff.
- b. Attend applicable staff meetings, taking and distributing official meeting minutes, when necessary, assist in assigning and tracking action items as needed.
- c. Time and Attendance activities - Timekeeper for Task ensuring proper signatures and maintaining files within web-based system and processing staff timekeeping records accurately on a biweekly basis and tracking telework hours.
- d. Travel activities - Working with staff to plan all travel, prepare travel authorizations, and review/prepare all domestic & foreign travel vouchers utilizing NOAA's travel database system and troubleshooting travel and routing issues.
- e. Requisitioning activities - Responsible for monitoring all office supplies and equipment including phone system, copiers and postal meters and ensuring adequate supplies and proper operation. Prepare purchase requests via the CSuite system to be shared and approved by Federal staff.
- f. Purchasing support activities - Demonstrate ability to assist in purchase process related to securing prices and quotes assisting full-time staff in collection of data and information so staff can make informed purchases.
- g. Assist with processing invoice receiving reports for payment and approval by Federal manager.
- h. Assist with tracking, monitoring and managing invoice tracking logs.
- i. Financial support activities - Utilize MARS system to generate budget reports. Enter financial data and reconcile spending in standardized NEFSC budget worksheet that tracks allocations and expenditures.
- j. Property tracking activities - Maintaining and updating property inventories and conducting annual verification exercises with staff. Utilize Sunflower Inventory System as necessary.
- k. Fleet vehicle oversight activities - Coordinate GSA vehicle reporting, maintenance, and leasing actions as necessary. Coordinate with GSA and program staff to monitor and schedule routine and emergency maintenance and upkeep of facilities and infrastructure including vehicles and boats as necessary and applicable.
- l. Maintain and update manuals, handbooks, periodicals, etc., in accordance with applicable regulations and guidance.

- m. Assist Trusted Agent and/or Federal sponsor with completing and distributing security clearance documentation as necessary.
- n. Complete NOAA or Task related Training as required or assigned in a timely manner within requested deadlines
- o. Foster a safe working environment for all employees through an ongoing focus on safety and health issues. Successfully complete approved workplace safety training. Ensure that any unsafe conditions in the workplace are brought to the attention of management in an expedient manner
- p. Attend staff meetings, take and distribute official meeting minutes, assist in assigning and tracking action items as needed.
- q. Complete NOAA or Task related Training as required or assigned in a timely manner within requested deadlines
- r. Perform other administrative duties as needed to support program operations.
- s. Display professional appearance/dress code, friendly/welcoming personality, positive attitude, politeness and avoid office scuttlebutt/gossip.

TASK 3C - ADMINISTRATIVE ASSISTANT Level III

The task may include the following:

- a. Answer phones, take messages, receive visitors, provide information, and refer calls or visitors to others as appropriate. Routing communications to appropriate staff.
- b. Attend applicable staff meetings, taking and distributing official meeting minutes, when necessary, assist in assigning and tracking action items as needed.
- c. Time and Attendance activities - Timekeeper for Task ensuring proper signatures and maintaining files within web-based system and processing staff timekeeping records accurately on a biweekly basis and tracking telework hours.
- d. Travel activities - Working with staff to plan all travel, prepare travel authorizations, and review/prepare all domestic & foreign travel vouchers utilizing NOAA's travel database system and troubleshooting travel and routing issues.
- e. Requisitioning activities - Responsible for monitoring all office supplies and equipment including phone system, copiers and plotters and ensuring adequate supplies and proper operation. Prepare purchase requests via the C-Suite system to be shared and approved by Federal staff.
- f. Purchasing support activities - Demonstrated ability to assist in purchase process related to securing prices and quotes assisting full-time staff in collection of data and information so staff can make informed purchases.
- g. Assist with processing invoice receiving reports for payment and approval by Federal manager.
- h. Assist with tracking, monitoring and managing invoice tracking logs.
- i. Property tracking activities - Maintaining and updating property inventories and conducting annual verification exercises with staff. Utilize Sunflower Inventory System as necessary.
- j. Fleet vehicle oversight activities - Coordinate GSA vehicle reporting, maintenance, and leasing actions as necessary. Coordinate with GSA and program staff to monitor and schedule routine and emergency maintenance and upkeep of facilities and infrastructure including vehicles and boats as necessary and applicable.
- k. Financial support activities - Utilize MARS system to generate budget reports. Enter financial data and reconcile spending in standardized NEFSC budget worksheet that tracks allocations and expenditures.
- l. Assist Trusted Agent and/or Federal sponsor with completing and distributing security clearance documentation as necessary.
- m. Maintain and update manuals, handbooks, periodicals, etc., in accordance with applicable regulations and guidance.
- n. Scientific data auditing and formatting of scientific reports and citations according to database, government, or journal standards.
- o. Consolidation of report chapters into master reports and production of publication ready word and pdf documents.
- p. Reconciliation of local records and databases with centralized government tracking summaries.

- q. Meeting coordination activities - Assist in arrangement of staff and interagency meetings, workshops and symposia, coordinating invitations, email lists, name tags, dissemination of meeting materials etc.
- r. Assist Trusted Agent and/or Federal sponsor with completing and distributing security clearance documentation as necessary.
- s. Attend staff meetings as necessary, take and distribute official meeting minutes, assist in assigning and tracking action items as needed.
- t. Complete NOAA or Task related Training as required or assigned in a timely manner within requested deadlines
- u. Perform other administrative duties as needed to support program operations.
- v. Foster a safe working environment for all employees through an ongoing focus on safety and health issues. Successfully complete approved workplace safety training. Ensure that any unsafe conditions in the workplace are brought to the attention of management in an expedient manner
- w. Display professional appearance/dress code, friendly/welcoming personality, positive attitude, politeness and avoid office scuttlebutt/gossip.

Experience/Education

The Contractor shall provide qualified individuals with sufficient education, training, and experience to adequately maintain the quality standards at an acceptable level that is consistent with identified standards cited in this contract.

The Contractor, through innovation, training, or other means, shall perform the required services in order to meet the quality and performance standards to achieve desired results.

General Description:

Level I: Minimum two (2) year of relevant experience, with up to three years total relevant experience; High School diploma or GED or equivalent. In lieu of a high school diploma or satisfying the total experience requirement, relevant experience, technical school, college courses or other credentials may be substituted based on depth, breadth and relevance to subject matter.

Level II: Minimum three (3) years of relevant experience, with up to five (5) years total relevant experience; High School diploma or GED or equivalent. In lieu of a high school diploma or satisfying the total experience requirement, relevant experience, technical school, college courses or other credentials may be substituted based on depth, breadth and relevance to subject matter.

Level III: Minimum five (5) years or more of relevant experience; High School diploma or GED or equivalent. In lieu of a high school diploma or satisfying the total experience requirement, relevant experience, technical school, college courses or other credentials may be substituted based on depth, breadth and relevance to subject matter.

III. PLACE OF PERFORMANCE

Work shall be conducted at the NEFSC Facility to include any one of the following locations Woods Hole, MA, Falmouth, MA, Narragansett, RI, Milford, CT, Sandy Hook, NJ, and Orono, ME. If work is required to be performed at another location, other than a NOAA Facility, it will be on a limited basis and in coordination with the Contracting Officer Representative (COR) and Project Manager.

IV. OPERATIONAL HOURS

NEFSC Facility access is from 7:00am-6:00pm, Monday through Friday. The work will be performed not to exceed 40 hours per week.

V. OVERTIME, TRAVEL, AND TRAINING

a. Overtime is not anticipated nor authorized at this time. If overtime is required, it will be coordinated through the COR and approved on a case-by-case basis by the Contracting Officer in writing. Any overtime worked prior to the receipt of proper written authorization from the Contracting Officer will be done at the Contractor's own risk and expense.

b. Travel will be reimbursed in accordance with the Federal Travel Regulations, and all contractor travel must approved prior to the actual travel by the COR, using the NMFS Travel Authorization Form.

c. Training is authorized for NMFS/NOAA/DOC specific systems and requirements only as required by the task order.

- NOAA IT Security
- NOAA Safety Training
- GSA Defensive Driving Training
- Records Management 101
- Sunflower Property training (if applicable based on tasks)
- C-Suite requisitioning system training (if applicable based on tasks)
- E2 Travel system training (if applicable based on tasks)
- WebTA system training (if applicable based on tasks)
- MARS financial system training (if applicable based on tasks)

Training

Any additional training **is not** anticipated nor authorized at this time. If training is required, it will be coordinated through the COR and approved on a case-by-case basis by the Contracting Officer in writing. Any training initiated prior to the receipt of proper written authorization from the Contracting Officer will be done at the Contractor's own risk and expense.

VI. PROGRESS REPORTS

The Project Manager shall provide a monthly progress report to the Contracting Officer and COR via electronic mail with submission of monthly invoice. This report shall include a summary of all Contractor work performed, including a breakdown of labor hours by labor category, all direct costs by line item, an assessment of technical progress, schedule status, any travel conducted and any Contractor concerns or recommendations for the previous reporting period.

VII. PROGRESS MEETINGS

The Project Manager shall be responsible for keeping the COR informed about Contractor progress throughout the performance period of this contract, and ensure Contractor activities are aligned with NOAA objectives. At a minimum, the Project Manager shall review the status and results of Contractor performance with the COR on a monthly basis via telephone or if possible, in-person meetings.

VIII. POST-AWARD CONFERENCE

The Contractor shall attend a Post Award Conference (i.e. “kickoff” meeting) with the Contracting Officer and the COR no later than 10 business days after the date of award. The purpose of the Post Award Conference, which will be chaired by the Contracting Officer, is to discuss technical and contracting objectives of this task order and review the Contractor's draft project plan. The Post Award Conference will be held at the Government’s facility (location will be provided at time of award) or via teleconference.

IX. REMOVING CONTRACTORS FOR MISCONDUCT OR SECURITY REASONS

The Government may, at its sole discretion (in coordination with the Contracting Officer where practical), direct the Contractor to remove any Contractor employee from NOAA facilities for misconduct or security reasons. Removal does not relieve the Contractor of the responsibility to continue providing the services required under the contract. The Contracting Officer will provide the Contractor with a written explanation to support any request to remove a Contractor.

X. CONFIDENTIALITY AND DATA PRIVACY

This task order may require that services contractors have access to Privacy Information. Services contractors are responsible for maintaining confidentiality of all subjects and materials and may be required to sign and adhere to a Non-disclosure Agreement (NDA) and IT Rules of Behavior.

XI. INTELLECTUAL PROPERTY RIGHTS

All deliverables are the property of the U.S. Government. All documents, analyses, files (digital or other), reports, notes and photos are to be used only by Contractor personnel assigned to this Task Order. Documents, files and other data are to be stored exclusively on Government owned equipment and at no point should be saved or archived on personal drives or devices. Copies are not to be disseminated to anyone outside of the NMFS or to any other contractor personnel without explicit release from the NMFS Project Leader.

XII. IT SECURITY

The contractor must meet the Department of Commerce IT Security Program Policy and Minimum Implementation Standards (found at <https://connection.commerce.gov/collection/it-security-policy-and-fisma-reporting-program>). The contractor must also adhere to NOAA and NMFS security policies (found at <https://www.csp.noaa.gov/policies/>).

XIII. SECTION 508 COMPLIANCE

Pursuant to Section 508 of the Rehabilitation Act of 1973 (29 U.S.C. 794d) as amended by P.L. 105-220 under Title IV (Rehabilitation Act Amendments of 1998), all Electronic and Information Technology (EIT) developed, procured, maintained and/or used under this contract shall be in compliance with the “Electronic and Information Technology Accessibility Standards” set forth by the Architectural and Transportation Barriers Compliance Board (also referred to as the “Access Board”) in 36 CFR Part 1194. The complete text of Section 508 Standards can be accessed at <http://www.access-board.gov/> or at <http://www.section508.gov>.

XIV. TELEWORKING

When the Place(s) of Performance is/are closed for holidays, weather, or other circumstances, the contractor

may not work on site. Performance may be performed from remote or alternate locations away from the primary place of performance. This is known as “Telework.” Telework may be authorized on a non-regularly scheduled (intermittent or episodic) basis for work activities that, can be performed effectively outside the primary place of performance and that can be clearly identified, measured or that are project oriented. At this time Teleworking is limited to Task 3.

The Contractor must have a Telework policy in place that sets forth a clear understanding between the employer and the employee regarding pertinent matters such as, safety, conduct, and liability. It is the sole responsibility of the Contractor to ensure its employees have the resources necessary to provide the required support and services while Teleworking, unless otherwise authorized and appropriate to the Telework instance at hand.

The activity/support tasking services to be performed will be identified in writing by the Contractor employee through the Contractor to the COR via email communication. The COR shall provide concurrence that there will be no negative impact to the mission if the Contractor worked off-site. The request shall be submitted a minimum of 24 hours in advance prior to the telework period being requested and will be reviewed and approved by the Contractor. The Contractor will be required to follow-up the day of Telework with a summary of work accomplished, with submission of deliverables as applicable. The summary shall be provided to the Contractor upon arrival at the primary place of performance. In addition, at the conclusion of each Telework instance, the Contractor shall provide a summary to the Contracting Officer.

XV. SECURITY CLEARANCES

The Contractor is responsible to ensure employees obtain a DOC identification badge after the proper background check in accordance with current DOC security requirements. The employee security clearance shall be in accordance with CAR 1352.237-72 Security Processing Requirements-Low Risk Contracts. Also a list of employees must be provided to the COR. Employees must have a badge to identify the company they work for.

XVI. TRAINING

The Contractor shall provide trained, knowledgeable technical personnel capable of performing the SOW in accordance with the requirements stated herein. NOAA will not provide or pay for training, conferences, or seminars for Contractor personnel in order for them to perform their tasks, with the exception of NOAA-specific and specialized training not obtainable outside NOAA. If it is determined during the performance of the contract that training, conferences, or seminars are required for contractor personnel, and this is not specified in a work request, then prior approval is required. The Contractor must submit a written request for approval to the Contracting Officer at least 30 days prior to the training, conference, or seminar. This written request must refer to the contract number and must include a detailed justification for the training event including how this training is either necessary or beneficial to NOAA. The COR will have five (5) days to approve or disapprove the request in writing.

Contractors must ensure their personnel are aware of and receive training so as to perform their duties utilizing the most up to date technology and resources.

XVII. ALL HANDS

The Contractor personnel may attend ‘All-Hands’ events that are for the benefit of all NOAA/NMFS/NEFSC personnel and Contractor staff. In accordance with Acquisition Alert 17-03 Proper Roles of the Services

Contractor, Contractors providing onsite support services to NOAA may be permitted to All Hands meetings. There may be instances where it is appropriate for contractors to attend staff meetings and/or off-site meetings where mission-related items are discussed. The COR will notify the contractor if they are allowed to attend these meetings and will specify whether the meetings are billable. Examples of such meetings might include an internal meeting to discuss ways to improve a system/application for which contractors regularly utilize or an “off-site” team meeting focused on a special project for which a contractor is part of the project team

SECTION II
CONTRACT TERMS AND CONDITIONS

1. FEDERAL ACQUISITION REGULATION (FAR) 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at these addresses:

Federal Acquisition Regulation (FAR) - <http://www.acquisition.gov>

Commerce Acquisition Regulation (CAR) – <http://farsite.hill.af.mil/vmcara.htm>

2. FEDERAL ACQUISITION REGULATION (FAR) 52.212-4 CONTRACT TERMS AND CONDITIONS-COMMERCIAL ITEMS ALT I (JAN 2017)

Fill-in information for 52.212-4 ALT I:

(a)(4): The portion of the “hourly rate” attributable to profit shall be 10 percent.

(e)(1)(3)(D): The following subcontracts for services which are specifically excluded from the hourly rate:
NONE.

(i)(1)(ii)(D)(1): Other Direct Costs will be identified in the Task Order.

(i)(1)(ii)(D)(2): The Government will reimburse the Contractor for indirect costs on a pro-rata basis over the period of contract performance at the following fixed price: \$0.00.

ADDENDUM TO FAR 52.212-4 CONTRACT TERMS AND CONDITIONS – COMMERCIAL ITEMS ALT 1 (JAN 2017)

A. GSA SCHEDULE CONTRACT TERMS AND CONDITIONS

The Contractor’s GSA schedule contract number {TO BE DETERMINED AT AWARD}, and FSS 738 X Human Capital Management and Administrative Support Services, terms and conditions apply to this Task Order and are in full effect for this Task Order.

B. CONTRACT TYPE

This is a Time and Materials Task Order for services against GSA Federal Supply Schedule, FSS 738 X Human Capital Management and Administrative Support Services, with a base period from June 3, 2020 through June 2, 2021.

The Contractor shall supply all necessary personnel, supervision, services, materials, travel and other items as required by the Task Order Performance Work Statement (PWS).

C. FAR 52.217-8 OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 15 days prior to the expiration of the task order.

SECTION II
CONTRACT TERMS AND CONDITIONS

Inclusion of FAR clause 52.217-8, Option to Extend Services, in the solicitation and resultant contract is for use by the Government as outlined at FAR 37.111, Extension of Services. The option will be exercised as needed at any time during the life of the contract using the rates applicable at the time of exercise.

(End of clause)

D. FAR 52.217-9 OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)

- (a) The Government may extend the term of this contract by written notice to the Contractor within 30 Days prior to the expiration of the task order; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 60 days before the contract expires. The preliminary notice does not commit the Government to an extension.
- (b) If the Government exercises this option, the extended contract shall be considered to include this option clause.
- (c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed five (5) years.

(End of clause)

E. CAR 1352.201-70 CONTRACTING OFFICER'S AUTHORITY (APR 2010)

The Contracting Officer is the only person authorized to make or approve any changes in any of the requirements of this Contract, and, notwithstanding any provisions contained elsewhere in this Contract, the said authority remains solely in the Contracting Officer. In the event the Contractor makes any changes at the direction of any person other than the Contracting Officer, the change will be considered to have been made without authority and no adjustment will be made in the Contract terms and conditions, including price.

(End of clause)

F. CAR 1352.201-72 CONTRACTING OFFICER'S REPRESENTATIVE (COR) (APR 2010)

- (a) [TBD] is hereby designated as the Contracting Officer's Representative (COR). The COR may be changed at any time by the Government without prior notice to the Contractor by a unilateral modification to the Contract. The COR is located at:

To be provided at time of award

- (b) The responsibilities and limitations of the COR are as follows:
 - (1) The COR is responsible for the technical aspects of the project and serves as technical liaison with the Contractor. The COR is also responsible for the final inspection and acceptance of all deliverables and such other responsibilities as may be specified in the contract.
 - (2) The COR is not authorized to make any commitments or otherwise obligate the Government or authorize any changes which affect the Contract price, terms or conditions. Any Contractor request for changes shall be referred to the Contracting Officer directly or through the COR. No such changes shall be made without the expressed prior authorization of the Contracting Officer (CO). The CO may designate assistant or alternate COR(s) to act for the COR by naming such assistant/alternate(s) in writing and transmitting a copy of such designation to the Contractor.

(End of Clause)

G. CAR 1352.237-75 KEY PERSONNEL (APR 2010)

- (a) The contractor shall assign to this contract the following key personnel:

Name: [To Be Provided at Award]
Program Manager

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- (b) The contractor shall obtain the consent of the Contracting Officer prior to making key personnel substitutions. Replacements for key personnel must possess qualifications equal to or exceeding the qualifications of the personnel being replaced, unless an exception is approved by the Contracting Officer.
- (c) Requests for changes in key personnel shall be submitted to the Contracting Officer at least 15 working days prior to making any permanent substitutions. The request should contain a detailed explanation of the circumstances necessitating the proposed substitutions, complete resumes for the proposed substitutes, and any additional information requested by the Contracting Officer. The Contracting Officer will notify the contractor within 10 working days after receipt of all required information of the decision on substitutions. The contract will be modified to reflect any approved changes.
(End of clause)

H. CAR 1352.270-70 PERIOD OF PERFORMANCE (APR 2010)

- (a) The anticipated period of performance of this task order is June 3, 2020 through June 2, 2021.
- (b) The option periods that may be exercised are as follows:

Period	Start date	End date
Option Year One	June 3, 2021	June 2, 2022
Option Year Two	June 3, 2022	June 2, 2023
Option Year Three	June 3, 2023	June 2, 2024
Option Year Four	June 3, 2024	June 2, 2025

- (c) The notice requirements for unilateral exercise of option periods are set out in FAR 52.217-9.
(End of clause)

I. NAM 1330-52.203-71 – NOTICE OF POST-GOVERNMENT EMPLOYMENT RESTRICTIONS (OCT 2015)

By submission of an offer in response to a NOAA solicitation or acceptance of a contract, the contractor acknowledges the restriction on current NOAA employees regarding contact with offerors regarding prospective employment and the corresponding obligations for contractors who engage them. The contractor further acknowledges that it has provided notice to former NOAA employees who will provide service to NOAA under the contract of post-Government employment restrictions that apply to them. Such restrictions include, but are not limited to, those set forth in:

- (a) 41 U.S.C. § 2103 regarding contacts between a federal employee working on a procurement and an offeror about prospective employment;
- (b) 18 U.S.C. § 207 regarding the restrictions on former federal employees having contact with a federal agency on behalf of another person or entity concerning a specific party matter with which the former employee was involved as a federal employee or for which the former federal employee had official responsibility;
- (c) 18 U.S.C. § 207 regarding the restrictions on former senior employees and senior political employees from having contact with his former federal agency on behalf of another person or entity concerning any official matter; and
- (d) 41 U.S.C. § 2104 regarding the restrictions on a former federal employee involved in an acquisition over \$10,000,000 from accepting compensation from a contractor.
(End of clause)

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J. NAM 1330-52.215-70 SCHEDULE OF DELIVERABLES (SEPT 2005)

The following is a schedule of all deliverables, including administrative deliverables, required during the period of performance of this contract:

ITEM	DESCRIPTION	QTY	DUE DATE	DELIVERY TO	REFERENCE
1	Monthly Progress Report	1	As required	COR	PWS, Section VI

K. NAM 1330-52.222-70 NOAA SEXUAL ASSAULT AND SEXUAL HARASSMENT PREVENTION AND RESPONSE POLICY (MAY 2018)

In accordance with NOAA Administrative Order (NAO) 202-1106, NOAA Sexual Assault and Sexual Harassment Prevention and Response Policy, it is the policy of NOAA to maintain a work environment free from sexual assault and sexual harassment. NOAA prohibits sexual assault and sexual harassment by or of any employee, supervisor, manager, contractor, vendor, affiliate, or other individual with whom NOAA employees come into contact by the virtue of their work for NOAA.

(a) Definitions.

Contractor Employees - The term “contractor employees,” as used in this solicitation and contract language, refers to employees of the prime contractor or its subcontractors, affiliates, consultants, or team members.

Sexual Assault - The term sexual assault, as used in this solicitation and contract language, means any conduct proscribed by state or federal sexual abuse laws, including, but not limited to, those defined in chapter 109A of title 18 of the U.S. Code (sexual abuse), and assaults committed both by offenders who are strangers to the victim and by offenders who are known or related by blood or marriage to the victim.

Sexual Harassment - As defined by the Equal Employment Opportunity Commission, sexual harassment is a form of sex discrimination that violates Title VII of the Civil Rights Act of 1964. It includes unwelcome sexual advances, requests for sexual favors, and other verbal, non-verbal, or physical conduct of a sexual nature when any of the following are true:

- Submission to such conduct is made either explicitly or implicitly as a term or condition of an individual's employment;
- Submission to or rejection of such conduct by an individual is used as the basis for employment decisions affecting such individual;
- The conduct unreasonably interferes with an individual's work performance or creates an intimidating, hostile, or offensive working environment.

The main characteristics of sexual harassment are that the harasser's conduct is targeted against the recipient's sex, gender identity, or sexual orientation, and is unwelcome to the recipient. It may include, but is not limited to: offensive jokes, slurs, epithets or name calling, undue attention, physical assaults or threats, unwelcome touching or contact, intimidation, ridicule or mockery, insults or put-downs, constant or unwelcome questions about an individual's identity, and offensive objects or pictures.

(b) Requirements.

1. It is the responsibility of the contractor to ensure that contractor employees maintain the highest degree of conduct and standards in performance of the contract. In support of this, NOAA urges

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its contractors to develop and enforce comprehensive company policy addressing sexual assault and sexual harassment.

2. The contractor shall include wording substantially the same as this solicitation and contract language in every subcontract so that it is binding upon each subcontractor.
3. If a contractor employee observes or is the object of sexual assault or sexual harassment, he or she is highly encouraged to report the matter, as soon as possible, to their immediate supervisor, the Contracting Officer's Representative (COR), subset of the COR (e.g. Task Manager or Assistant COR), or contracting officer (CO) if a COR is not assigned to the contract. The contract employee may also contact the NOAA Civil Rights Office to obtain guidance on reporting instances of sexual assault or sexual harassment. If deemed necessary, the contractor employee may also report such instances to local law enforcement. In the case where the incident occurs while performing at a remote location, such as at sea or in the field (at a field camp or other isolated location) where the above referenced individuals are unavailable, the contractor employee should follow the reporting procedure set forth in NAO 202-1106, Section 6,.07, Reporting from Remote Locations.
 - i. Swift reporting allows NOAA and the contractor to take the appropriate measures to ensure that offensive behavior stops and the complainants' needs are addressed.
 - ii. The COR (if assigned), CO, and contractor, where applicable, will work together to ensure appropriate action is taken in accordance with applicable laws and regulations, contract terms and conditions, and the contractor's written policy (where applicable).
4. The contractor shall provide all contractor employees assigned to perform under this contract with mandatory sexual assault and sexual harassment prevention and response training in compliance with the requirements of NAO 202-1106, Section 5, Prevention Training and Awareness, as part of their initial in-processing and on an annual basis thereafter. The initial training shall be completed within business days [30 unless a different number is inserted] of contract award or the date a contractor employee is assigned to perform under the contract, as applicable.

Evidence of initial training by name and date completed for each contractor employee, shall be submitted to the COR or contracting officer (if no COR assigned) within 10 business days of completion.

Evidence of annual training by name and date completed for each contractor employee shall be submitted to the COR or contracting officer (if no COR assigned) no later than March 1st of each calendar year of contract performance.

- i. The mandatory sexual assault and sexual harassment training provided by the contractor shall include the required elements set forth by NOAA's Workplace Violence Program Manager. A link to the website including the required elements of the training is provided at: http://www.ago.noaa.gov/quicklinks/harassment_training.html. The website will also provide training materials and resources to assist the contractor in conducting the training. The contractor may provide training that solely addresses the NOAA required elements or may supplement existing company sexual assault and sexual harassment training in a manner that ensures all of the elements are adequately addressed.
- ii. The required elements of the training and resources available to the contractor for the training may be updated by NOAA periodically. The contractor is responsible for monitoring the website and incorporating any changes to the NOAA required elements into the contractor provided training.

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- iii. NOAA's Workplace Violence Program Manager, COR, or CO may periodically review the contractor's training outline to ensure all required elements are included and, if necessary, any appropriate adjustments are made to the training by the contractor.
 - iv. Contractor employees performing on assignments in a remote location, such as at a field camp or other isolated locations, are subject to receiving the same briefing on the parameters of the order provided to NOAA employees as set forth in Section 6 of NAO 202-1106.
5. The contractor shall provide a copy of this solicitation and contract language and NAO 202-1106 to contractor employees.

(c) Sexual Assault/Sexual Harassment (SASH) Helpline.

For NOAA employees, affiliates, and contractors who have experienced sexual assault or sexual harassment, NOAA has established the NOAA Sexual Assault/Sexual Harassment (SASH) helpline. This helpline is designed to provide crisis intervention, referrals, and emotional support to those who are victims and/or survivors of sexual harassment or sexual assault within the workplace. Contractor employees may use the helpline to receive live, confidential, one-on-one support in an occurrence of sexual harassment or assault by a Federal Government employee.

All services are anonymous, secure, and available worldwide, 24 hours a day, seven days a week. The NOAA SASH helpline is accessible through a variety of channels, including:

- Phone: 1-866-288-6558
- Website & Online Chat: <https://www.noasashhelpline.org/>
- Mobile App: NOAA SASH Helpline (available via iOS and Android App Stores)
- Text: (202) 335-0265

(d) Confidentiality.

Any party receiving information from the filing of a complaint alleging sexual assault or sexual harassment, or while performing an investigation into such a complaint, shall keep the information confidential. "Confidentiality" means that the information shall only be shared with others who have a need to know the information to conduct their official duties.

(e) Remedies.

In addition to other remedies available to the Government, contractor employee violations of Federal requirements (e.g., law, statutes, executive orders, code, rules, regulations) applicable to sexual assault and sexual harassment and/or failure to complete the mandatory training set forth in this solicitation and contract language, may result in:

1. Requiring the Contractor to remove a contractor employee or employees from the performance of the contract;
2. Requiring the Contractor to terminate a subcontract;
3. Suspension of contract payments until the Contractor has taken appropriate remedial action;
4. Termination of the contract for default or cause, in accordance with the termination clause of this contract;
5. Suspension or debarment; or
6. Other appropriate action.

(End of Clause)

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L. NAM 1330-52.237-70 CONTRACTOR COMMUNICATIONS

- (a) A contractor employee shall be identified both by the individual's name and the contractor's name when:
1. Included in NOAA's locator, and
 2. When submitting any type of electronic correspondence to any NOAA employee or stakeholder.
- (b) Any written correspondence from a contractor or any contractor employee shall be printed on company/organization letterhead or otherwise clearly identify the sender as an employee of the company or organization and shall identify the contract number.
- (c) Contractors and/or contractor employees shall clearly identify themselves as such in any verbal communications, whether in informal discussion or a formal meeting.

**M. NAM 1330-52.237-71 NOAA GOVERNMENT-CONTRACTOR RELATIONS - NON-
PERSONAL SERVICES CONTRACT (SEPT 2017)**

(a) The Government and the Contractor understand and agree that the services to be delivered under this contract by the Contractor to the Government are non-personal services as defined in FAR Part 37, Service Contracting, and the parties recognize and agree that no employer-employee relationship exists or will exist under the contract between the Government and the Contractor's personnel. It is, therefore, in the best interest of the Government to afford both parties an understanding of their respective obligations.

(b) Contractor personnel under this contract shall not:

(1) Be placed in a position where they are under relatively continuous supervision and control of a Government employee.

(2) Be placed in a position of command, supervision, administration, or control over Government personnel or over personnel of other Contractors performing under other NOAA contracts.

(c) The services to be performed under this contract do not require the Contractor or the Contractor's personnel to exercise personal judgement and discretion on behalf of the Government. Rather, the Contractor's personnel will act and exercise personal judgement and discretion on behalf of the Contractor.

(d) Rules, regulations, directives, and requirements that are issued by the Department of Commerce and NOAA under its responsibility for good order, administration, and security are applicable to all personnel who enter the Government installation and facilities, who are provided access to Government systems, or who travel on Government transportation. This is not to be construed or interpreted to establish any degree of Government control that is inconsistent with a non-personal services contract.

(e) Both parties are responsible for monitoring contract activities for indications of improper employee-employer relationships during performance. In the event a situation or occurrence takes place inconsistent with this contract language, the following applies:

(1) The Contractor shall notify the Contracting Officer in writing within 5 business days from the date of any situation or occurrence where the Contractor considers specific contract activity to be inconsistent with the intent of this contract language. The notice must include the date, nature and circumstance of the situation or occurrence, the name, function and activity of each Government employee or Contractor employee involved or knowledgeable about the situation or occurrence, provide any documents or the substance of any oral communications related to the activity, and an estimated date by which the Government is recommended to respond to the notice in order to minimize cost, delay, or disruption of performance.

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(2) The Contracting Officer will review the information provided by the Contractor, obtain additional information (if needed), and respond in writing as soon as practicable after receipt of the notification from the Contractor. The Contracting Officer's response will provide a decision on whether the Contracting Officer determines the situation or occurrence to be inconsistent with the intent of this contract language and, if deemed necessary, will specify any corrective action(s) to be taken in order to resolve the issue.

N. NAM 1330-52.237-72 CONTRACTOR ACCESS TO NOAA FACILITIES (SEPT 2017)

(a)(1) The performance of this contract requires employees of the prime contractor or its subcontractors, affiliates, consultants, or team members ("contractor employees") to have access to and to the extent authorized, mobility within, a NOAA facility.

(2) NOAA may close and or otherwise deny contractor employees access to a NOAA facility for a portion of a business day or longer for various reasons including, but not limited, to the following events:

(i) Federal public holidays for federal employees in accordance with 5 U.S.C. 6103;

(ii) Fires, floods, earthquakes, and unusually severe weather, including but not limited to snow storms, tornadoes, and hurricanes;

(iii) Occupational safety or health hazards;

(iv) Lapse in Appropriations; or

(v) Federal Statute, Executive Order, Presidential Proclamation, or any other unforeseen reason.

(3) In such events, the contractor employees may be denied access to a NOAA facility that is ordinarily available for the contractor to perform work or make delivery, as required by the contract.

(b) In all instances where contractors are denied access or required to vacate a NOAA facility, in part or in whole, the contractor shall be responsible to ensure contractor personnel working under the contract comply. If the circumstances permit, the contracting officer will provide direction to the contractor, either directly or through the Contracting Officer's Representative (COR), which could include continuing on-site performance during the NOAA facility closure period; however, if Government oversight is required and is not available, on-site performance shall not be allowed. In the absence of such direction, the contractor shall exercise sound judgment to minimize unnecessary contract costs and performance impacts, for example, performing required work off-site if possible or reassigning personnel to other activities if appropriate.

(c) The contractor shall be responsible for monitoring the Office of Personnel Management at www.opm.gov, the local radio, television stations, NOAA web sites, and other communication channels. Once the facility is accessible, the contractor shall resume contract performance as required by the contract.

(d) For the period that NOAA facilities were not accessible to contractors who required access in order to perform the services, the contracting officer may—

(1) Adjust the contract performance or delivery schedule for a period equivalent to the period the NOAA facility was not accessible;

(2) Forego the work; or

(3) Reschedule the work by mutual agreement of the parties.

(e) Notification procedures of a NOAA facility closure, including contractor denial of access, are as follows:

(1) The contractor shall be responsible for notification of its employees of the NOAA facility closure to include denial of access to the NOAA facility. The dismissal of NOAA employees in accordance with statute and regulations providing for such dismissals shall not, in itself, equate to a NOAA facility closure in which contractors are denied access. Moreover, the leave status of NOAA employees shall not be

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conveyed or imputed to contractor personnel. Accordingly, unless a NOAA facility is closed and the contractor is denied access to the facility, the contractor shall continue performance in accordance with the contract.

(2) Access to Government facilities and resources, including equipment and systems, will be limited and personnel necessary to administer contract performance may not be available. Generally, supply and service contracts that are funded beyond the date of the lapse in appropriation and do not require access to Government facilities, active administration by Government personnel or the use of government resources in a manner that would cause the government to incur additional obligations during the lapse in appropriation may continue. If a delivery date for a contract falls during the period of a lapse in appropriations, Government personnel may not be available to receive delivery. Contractors are directed to consult with a contracting officer before attempting to make a delivery. Contracting officers will be available throughout the lapse in appropriation period to provide guidance.

Once OMB guidance is given, CORs, in consultation with the contracting officer, will notify those contractors that are deemed by the Program Office to be performing excepted work and identify the contractor personnel requiring access to NOAA facilities. CORs will also coordinate with directly with facility management or physical security personnel at respective locations to ensure that the names of contractor personnel requiring access to government facilities during the lapse in appropriations are provided to physical security personnel.

Contractors who are not designated as performing excepted work are not allowed access to Government facilities or to utilize government resources in a manner that would incur any additional obligation of funding on behalf of the government during the lapse in appropriation.

(3) Unless otherwise specified within the contract award, contractors requiring access to NOAA facilities outside normal business hours or outside the normal workweek shall submit a written request in writing through the COR to the contracting officer. The written request shall provide justification supporting the required access and be submitted 48 hours before access to the NOAA facility is needed.

(End of clause)

O. NAM 1330-52.242-70 SUBMITTAL OF INVOICES

- a) The Contractor shall prepare and submit an invoice to the COR for approval with a copy to the contracting officer for information. All invoices shall be submitted by the 10th day of the subsequent month.
- b) Payment will be based on receipt of a proper invoice and satisfactory contract performance and guidelines in FAR 32.9, Prompt Payment. To constitute a proper invoice, the Contractor's invoice shall be prepared in accordance with, and contain all elements specified in FAR 52.212-4(g), "Invoices".
- c) Original invoices shall be mailed (via U.S. Postal Service) to the designated billing office as follows:

To be provided at the time of award
NMFS/Northeast Fisheries Science Center (NEFSC)
Email: To be provided at the time of award

A copy of all invoices shall be emailed to the contract administration office as follows:
NOAA/Eastern Region Acquisition Division
Attn: Amy McLiverty

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200 Granby Street, Suite 815
Norfolk, VA 23510
Email: Amy.L.McLiverty@noaa.gov

The designated payment office for this contract is:

NOAA
Eastern Finance Branch
NOAA Finance Office, AOD
20020 Century Blvd.
Germantown, MD 20874-1178

- d) The Contractor will submit invoices to the Contract Officer's Representative stating the hours worked, the task and/or equipment purchases made. A final invoice should be submitted with the final report, and will be paid when the final report and all tasks are reviewed and deemed to be complete by the Agency.
- e) The Government will return invoices that do not comply with these requirements. If the invoice does not comply with FAR 52.212-4(g), "Invoices", the COR will return it to the Contractor within seven days after the date the designated office received the invoice along with a statement as to the reasons why it is not a proper invoice.

(End of clause)

P. NAM 1330-52.270-304 NOAA ACQUISITION AND GRANTS OFFICE OMBUDSMAN (OCT 2016)

The NOAA Acquisition and Grants Office (AGO) Ombudsman is available to organizations to promote responsible and meaningful exchanges of information. Generally, the purpose of these exchanges will be to:

- a. Allow contractors to better prepare for and propose on business opportunities.
- b. Advise as to technologies and solutions within the marketplace that the Government may not be aware of, or is not fully benefiting from.
- c. Identify constraints in transparency and process.

The AGO Ombudsman will objectively, reasonably, and responsibly collaborate with parties and recommend fair, impartial, and constructive solutions to the matters presented to him/her. Further, the AGO Ombudsman will maintain the reasonable and responsible confidentiality of the source of a concern, when such a request has been formally made by an authorized officer of an organization seeking to do business with, or already doing business with NOAA.

Before consulting with the AGO Ombudsman, interested parties must first address their concerns, issues, disagreements, and/or recommendations with the respective contracting officer for resolution. However, direct access to the AGO Ombudsman may be sought when an interested party questions the objectivity or equity of a contracting officer's decision, or when there is a bona fide reason to believe that reasonable, responsible, and objective consideration will not be received from an assigned contracting officer.

There are several constraints to the scope of the AGO Ombudsman's authority, for instance:

- a. Consulting with the AGO Ombudsman does not alter or postpone the timelines of any formal process (e.g., protests, claims, debriefings, employee employer actions, activities involving A-76 competition performance decisions, judicial or congressional hearings, or proposal, amendment, modification or deliverable due dates, etc.).
- b. The AGO Ombudsman cannot participate in the evaluation of proposals, source

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- selection processes, or the adjudication of protests or formal contract disputes.
- c. The AGO Ombudsman is not authorized to generate or alter laws, judicial decisions, rules, policies, or formal guidance.
 - d. The AGO Ombudsman is not authorized to develop or alter opportunity announcements, solicitations, contracts, or their terms or conditions.
 - e. The AGO Ombudsman cannot overrule the authorized decisions or determinations of the contracting officer.
 - f. The AGO Ombudsman has no authority to render a decision that binds AGO, NOAA, the Department of Commerce, or the U.S. Government.
 - g. The AGO Ombudsman is not NOAA's agent relative to the service of magistrate or judicial process and cannot be used to extend service of process to another party (whether federal, public, or a private entity).

After review and analysis of a filed concern or recommendation, the AGO Ombudsman may refer the interested party to another more suitable federal official for consideration. Moreover, concerns, disagreements, and/or recommendations that cannot be resolved by the AGO Ombudsman will need to be pursued through more formal venues.

The AGO Ombudsman is not to be contacted to request copies of forms and/or documents under the purview of a contracting officer. Such documents include Requests for Information, solicitations, amendments, contracts, modifications, or conference materials.

Questions regarding this solicitation and contract language shall be directed to Rafael Roman, NOAA AGO Ombudsman, at Rafael.Roman@noaa.gov.

END OF ADDENDUM TO FAR 52.212-4 CONTRACT TERM AND CONDITIONS – COMMERCIAL ITEMS (JAN 2017)

3. FAR 52.212-5 CONTRACT TERMS AND CONDITIONS REQUIRED TO IMPLEMENT STATUTES OR EXECUTIVE ORDERS -- COMMERCIAL ITEMS (JAN 2020)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial items:

- (1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).
- (2) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab and Other Covered Entities (Jul 2018) (Section 1634 of Pub. L. 115-91).
- (3) 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (Nov 2015)
- (4) 52.233-3, Protest After Award (AUG 1996) (31 U.S.C. 3553).
- (5) 52.233-4, Applicable Law for Breach of Contract Claim (OCT 2004) (Public Laws 108-77, 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the contracting officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial items:

- X (1) 52.203-6, Restrictions on Subcontractor Sales to the Government (Sept 2006), with Alternate I (Oct 1995) (41 U.S.C. 4704 and 10 U.S.C. 2402).
- ____ (2) 52.203-13, Contractor Code of Business Ethics and Conduct (Oct 2015) (41 U.S.C. 3509).

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- ___ (3) 52.203-15, Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (Jun 2010) (Section 1553 of Pub L. 111-5) (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009).
- X (4) 52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards (Oct 2018) (Pub. L. 109-282) (31 U.S.C. 6101 note).
- ___ (5) [Reserved]
- ___ (6) 52.204-14, Service Contract Reporting Requirements (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).
- ___ (7) 52.204-15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).
- X (8) 52.209-6, Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment (Oct 2015) (31 U.S.C. 6101 note).
- X (9) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (Oct 2018) (41 U.S.C. 2313).
- ___ (10) [Reserved]
- ___ (11) (i) 52.219-3, Notice of HUBZone Set-Aside or Sole-Source Award (Nov 2011) (15 U.S.C. 657a).
- ___ (ii) Alternate I (Nov 2011) of 52.219-3.
- ___ (12) (i) 52.219-4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (Oct 2014) (if the offeror elects to waive the preference, it shall so indicate in its offer)(15 U.S.C. 657a).
- ___ (ii) Alternate I (Jan 2011) of 52.219-4.
- ___ (13) [Reserved]
- X (14) (i) 52.219-6, Notice of Total Small Business Set-Aside (Nov 2011) (15 U.S.C. 644).
- ___ (ii) Alternate I (Nov 2011).
- ___ (iii) Alternate II (Nov 2011).
- ___ (15) (i) 52.219-7, Notice of Partial Small Business Set-Aside (June 2003) (15 U.S.C. 644).
- ___ (ii) Alternate I (Oct 1995) of 52.219-7.
- ___ (iii) Alternate II (Mar 2004) of 52.219-7.
- X (16) 52.219-8, Utilization of Small Business Concerns (Oct 2018) (15 U.S.C. 637(d)(2) and (3)).
- ___ (17) (i) 52.219-9, Small Business Subcontracting Plan (Aug 2018) (15 U.S.C. 637 (d)(4)).
- ___ (ii) Alternate I (Nov 2016) of 52.219-9.
- ___ (iii) Alternate II (Nov 2016) of 52.219-9.
- ___ (iv) Alternate III (Nov 2016) of 52.219-9.
- ___ (v) Alternate IV (Aug 2018) of 52.219-9.
- ___ (18) 52.219-13, Notice of Set-Aside of Orders (Nov 2011) (15 U.S.C. 644(r)).
- ___ (19) 52.219-14, Limitations on Subcontracting (Jan 2017) (15 U.S.C. 637(a)(14)).
- ___ (20) 52.219-16, Liquidated Damages—Subcontracting Plan (Jan 1999) (15 U.S.C. 637(d)(4)(F)(i)).
- ___ (21) 52.219-27, Notice of Service-Disabled Veteran-Owned Small Business Set-Aside (Nov 2011) (15 U.S.C. 657f).
- ___ (22) 52.219-28, Post Award Small Business Program Rerepresentation (Jul 2013) (15 U.S.C. 632(a)(2)).
- ___ (23) 52.219-29, Notice of Set-Aside for, or Sole Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (Dec 2015) (15 U.S.C. 637(m)).
- ___ (24) 52.219-30, Notice of Set-Aside for, or Sole Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (Dec 2015) (15 U.S.C. 637(m)).
- X (25) 52.222-3, Convict Labor (June 2003) (E.O. 11755).
- ___ (26) 52.222-19, Child Labor—Cooperation with Authorities and Remedies (Jan 2020) (E.O. 13126).
- X (27) 52.222-21, Prohibition of Segregated Facilities (Apr 2015).

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- X (28) (i) 52.222-26, Equal Opportunity (Sep 2016) (E.O. 11246).
____ (ii) Alternate I (Feb 1999) of 52.222-26.
- X (29) (i) 52.222-35, Equal Opportunity for Veterans (Oct 2015) (38 U.S.C. 4212).
____ (ii) Alternate I (July 2014) of 52.222-35.
- X (30) (i) 52.222-36, Equal Opportunity for Workers with Disabilities (Jul 2014) (29 U.S.C. 793).
____ (ii) Alternate I (July 2014) of 52.222-36.
- X (31) 52.222-37, Employment Reports on Veterans (Feb 2016) (38 U.S.C. 4212).
- X (32) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496).
- X (33) (i) 52.222-50, Combating Trafficking in Persons (JAN 2019)
(22 U.S.C. chapter 78 and E.O. 13627).
____ (ii) Alternate I (Mar 2015) of 52.222-50, (22 U.S.C. chapter 78 and E.O. 13627).
- X (34) 52.222-54, Employment Eligibility Verification (Oct 2015). (E. O. 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial items as prescribed in 22.1803.)
- ____ (35) (i) 52.223-9, Estimate of Percentage of Recovered Material Content for EPA-Designated Items (May 2008) (42 U.S.C. 6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)
____ (ii) Alternate I (May 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)
- ____ (36) 52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (Jun 2016) (E.O.13693).
- ____ (37) 52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (Jun 2016) (E.O. 13693).
- ____ (38) (i) 52.223-13, Acquisition of EPEAT® -Registered Imaging Equipment (Jun 2014) (E.O.s 13423 and 13514
____ (ii) Alternate I (Oct 2015) of 52.223-13.
- ____ (39) (i) 52.223-14, Acquisition of EPEAT® -Registered Television (Jun 2014) (E.O.s 13423 and 13514).
____ (ii) Alternate I (Jun 2014) of 52.223-14.
- ____ (40) 52.223-15, Energy Efficiency in Energy-Consuming Products (Dec 2007) (42 U.S.C. 8259b).
- ____ (41) (i) 52.223-16, Acquisition of EPEAT® -Registered Personal Computer Products (Oct 2015) (E.O.s 13423 and 13514).
____ (ii) Alternate I (Jun 2014) of 52.223-16.
- X (42) 52.223-18, Encouraging Contractor Policies to Ban Text Messaging while Driving (Aug 2011) (E.O. 13513).
- ____ (43) 52.223-20, Aerosols (Jun 2016) (E.O. 13693).
- ____ (44) 52.223-21, Foams (Jun 2016) (E.O. 13696).
- ____ (45) (i) 52.224-3, Privacy Training (Jan 2017) (5 U.S.C. 552a).
____ (ii) Alternate I (Jan 2017) of 52.224-3.
- ____ (46) 52.225-1, Buy American--Supplies (May 2014) (41 U.S.C. chapter 83).
- ____ (47) (i) 52.225-3, Buy American--Free Trade Agreements--Israeli Trade Act (May 2014) (41 U.S.C. chapter 83, 19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, Pub. L. 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43).
____ (ii) Alternate I (May 2014) of 52.225-3.
____ (iii) Alternate II (May 2014) of 52.225-3.
____ (iv) Alternate III (May 2014) of 52.225-3.
- ____ (48) 52.225-5, Trade Agreements (Aug 2018) (19 U.S.C. 2501, et seq., 19 U.S.C. 3301 note).

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___ (49) 52.225-13, Restrictions on Certain Foreign Purchases (June 2008) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).

___ (50) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. 2302 Note).

___ (51) 52.226-4, Notice of Disaster or Emergency Area Set-Aside (Nov 2007) (42 U.S.C. 5150).

___ (52) 52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (Nov 2007) (42 U.S.C. 5150).

___ (53) 52.232-29, Terms for Financing of Purchases of Commercial Items (Feb 2002) (41 U.S.C. 4505), 10 U.S.C. 2307(f)).

___ (54) 52.232-30, Installment Payments for Commercial Items (Jan 2017) (41 U.S.C. 4505, 10 U.S.C. 2307(f)).

X (55) 52.232-33, Payment by Electronic Funds Transfer--System for Award Management (Oct 2018) (31 U.S.C. 3332).

___ (56) 52.232-34, Payment by Electronic Funds Transfer—Other Than System for Award Management (Jul 2013) (31 U.S.C. 3332).

___ (57) 52.232-36, Payment by Third Party (May 2014) (31 U.S.C. 3332).

___ (58) 52.239-1, Privacy or Security Safeguards (Aug 1996) (5 U.S.C. 552a).

___ (59) 52.242-5, Payments to Small Business Subcontractors (Jan 2017) (15 U.S.C. 637(d)(13)).

___ (60) (i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (Feb 2006) (46 U.S.C. Appx 1241(b) and 10 U.S.C. 2631).

___ (ii) Alternate I (Apr 2003) of 52.247-64.

___ (iii) Alternate II (Feb 2006) of 52.247-64.

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or executive orders applicable to acquisitions of commercial items:

___ (1) 52.222-17, Nondisplacement of Qualified Workers (May 2014) (E.O. 13495)

X (2) 52.222-41, Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter 67).

X (3) 52.222-42, Statement of Equivalent Rates for Federal Hires (May 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

**THIS STATEMENT IS FOR INFORMATION ONLY:
IT IS NOT A WAGE DETERMINATION**

*This Statement is for Information Only:
It is not a Wage Determination*

Employee Class	Federal Wage Equivalent
Receptionist	GS-4
Aquarium Greeter	GS-4
Administrative Assistant I	GS-5
Administrative Assistant II	GS-7
Administrative Assistant III	GS-9

X (4) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards -- Price Adjustment (Multiple Year and Option Contracts) (Aug 2018) (29 U.S.C.206 and 41 U.S.C. chapter 67).

___ (5) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards -- Price Adjustment (May 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

___ (6) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment--Requirements (May 2014) (41 U.S.C. chapter 67).

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____ (7) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services--Requirements (May 2014) (41 U.S.C. chapter 67).

X (8) 52.222-55, Minimum Wages Under Executive Order 13658 (Dec 2015) (E.O. 13658).

X (9) 52.222-62, Paid Sick Leave Under Executive Order 13706 (JAN 2017) (E.O. 13706).

____ (10) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations. (May 2014) (42 U.S.C. 1792).

(d) Comptroller General Examination of Record The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, and does not contain the clause at 52.215-2, Audit and Records -- Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR Subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e)

(1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c) and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1) in a subcontract for commercial items. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause—

(i) 52.203-13, Contractor Code of Business Ethics and Conduct (Jan 2019) (41 U.S.C. 3509).

(ii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iii) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab and Other Covered Entities (Jul 2018) (Section 1634 of Pub. L. 115-91).

(iv) 52.219-8, Utilization of Small Business Concerns (Oct 2018) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds \$700,000 (\$1.5 million for construction of any public facility), the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.

(v) 52.222-17, Nondisplacement of Qualified Workers (May 2014) (E.O. 13495). Flow down required in accordance with paragraph (1) of FAR clause 52.222-17.

(vi) 52.222-21, Prohibition of Segregated Facilities (Apr 2015).

(vii) 52.222-26, Equal Opportunity (Sep 2016) (E.O. 11246).

(viii) 52.222-35, Equal Opportunity for Veterans (Oct 2019) (38 U.S.C. 4212).

(ix) 52.222-36, Equal Opportunity for Workers with Disabilities (Jul 2014) (29 U.S.C. 793).

(x) 52.222-37, Employment Reports on Veterans (Feb 2016) (38 U.S.C. 4212).

(xi) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.

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(xii) 52.222-41, Service Contract Labor Standards (Aug 2018), (41 U.S.C. chapter 67).

(xiii) (A) 52.222-50, Combating Trafficking in Persons (Jan 2019) (22 U.S.C. chapter 78 and E.O. 13627).

(B) Alternate I (Mar 2015) of 52.222-50 (22 U.S.C. chapter 78 E.O. 13627).

(xiv) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment--Requirements (May 2014) (41 U.S.C. chapter 67.)

(xv) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services--Requirements (May 2014) (41 U.S.C. chapter 67)

(xvi) 52.222-54, Employment Eligibility Verification (Oct 2015) (E. O. 12989).

(xvii) 52.222-55, Minimum Wages Under Executive Order 13658 (Dec 2015).

(xviii) 52.222-62, Paid sick Leave Under Executive Order 13706 (JAN 2017) (E.O. 13706).

(xix) (A) 52.224-3, Privacy Training (Jan 2017) (5 U.S.C. 552a).

(B) Alternate I (Jan 2017) of 52.224-3.

(xx) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. 2302 Note).

(xxi) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations. (May 2014) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.

(xxii) 52.247-64, Preference for Privately-Owned U.S. Flag Commercial Vessels (Feb 2006) (46 U.S.C. Appx 1241(b) and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2) While not required, the Contractor may include in its subcontracts for commercial items a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

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SOLICITATION PROVISIONS

1. FAR 52.212-1, INSTRUCTIONS TO OFFERORS – COMMERCIAL ITEMS (APR 2014) ADDENDUM

Addendum: All references herein to “offerors” shall be construed as “Vendors,” and all references herein to “offers” or “bids” shall be construed as “quotes.” The text of paragraph “c” is changed to read “The Vendor agrees to hold the prices in its quote firm for 180 calendar days from the date specified for receipt of quotes.” The text of paragraph “f” is hereby deleted and annotated as “Reserved.” The text of paragraph “l” is deleted.

Quote Preparation: The cover should indicate the following:

- Title of the Quote
- Request for Quote (RFQ) Number
- Name and address of Vendor, Cage Code, DUNS, Business Size and applicable TAX I.D. Number (TIN)
- Quote validity period of 180 days from date of quote submission
- Quote shall be submitted electronically to Amy McLiverty @amy.l.mcliverty@noaa.gov

Vendors shall complete Attachment B-Accounting System Questionnaire and submit with quote. If the vendor has responded to NOAA Fisheries, Eastern Region Acquisition Division (ERAD) solicitation within the last two (2) years prior to the response date and time of this solicitation, please identify what solicitation number and the name of the requirement.

(b) Overall Arrangement of Quote.

Technical Quote

(A) The Technical Quote, consists of the Vendor’s quote delineating its capabilities and how it intends to perform contract requirements. The Technical quote shall be evaluated in accordance with FAR 52.212-2.

(B) In order for the technical quote to be evaluated strictly on the merit of the material submitted, no contractual price information is to be included in the Technical quote.

(C) The technical quote must be typed, double-spaced, with one inch margins, using 12 pitch type (or equivalent) and printed, unreduced in size, on 8 ½” by 11” paper, not exceeding thirty (30) pages, single-sided (excluding graphics), exclusive of cover pages, table of contents, list of figures, list of tables, acronym list, and related past performance information. Any pages in excess of thirty (30) will be disregarded, and will not be included in the quote evaluation. Failure of the Vendor to comply with the page limitations, resulting in the excess pages not being evaluated, shall not constitute grounds for a protest.

Factor 1 – Technical Management Approach

Vendors shall present a Technical Management Approach which shall document and demonstrate how your company intends to perform the tasks stated in the Performance Work Statement (PWS). Vendor shall describe its Transition and Staffing Plan for providing Administrative Support Services.

The plan should describe how the company intends to ramp up and when the vendor will be at full capacity. Indicate any subcontracting or teaming arrangements, the reason they are on the team for the contract, and the value that they will add to the Task Order.

1.1 Technical/Management Plan- The Vendor shall present a Technical/Management plan that clearly describes the management controls, techniques and procedures to be used to ensure required work is performed in a timely, responsive, professional, and efficient manner. The Technical/Management Plan must include at a minimum the elements listed below:

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- The vendor shall provide a staffing approach that demonstrates an understanding of the skill sets required to successfully accomplish the tasks of the PWS.
- The vendor shall address their approach for recruiting, development, and retention of workforce.

*Vendors simply providing general statements or paraphrasing/parroting the PWS in whole or in any part may result in a potential weaknesses and/or deficiencies.

1.2 Transition Plan- The Vendor shall identify/provide detailed transition plan for the implementation of the required services under the PWS. An adequate timeline is required to ascertain transition from the incumbent to the successor for the NEFSC Administrative Support Services. The Vendor shall identify all actions necessary for a smooth transition of operational responsibility. The Vendor shall also identify a phase-out plan to put into effect a smooth and orderly transfer of contract responsibility to a successor. A contingency plan shall be provided detailing management initiatives of any issues/obstacles during phase-transition.

Factor 2 – Past Performance

The vendor's past performance on related contracts will be evaluated to determine, as appropriate, successful performance of contract requirements, quality and timeliness of delivery of goods and services, cost management, communications between contracting parties, proactive management and customer satisfaction. The vendor shall describe relevant performance on three (3) other contracts or affirmatively state that it possesses no relevant past performance. Include a maximum of three (3) contracts performed within the last three (3) years, from the issue date of the solicitation, that are similar in scope, complexity and magnitude to the instant solicitation and include:

1. Contract Number (When available include relevant /applicable Indefinite Delivery, Indefinite Quantity (ID/IQ) Task Order Numbers, not just the Base ID/IQ number.)
2. Name and Address of the Government Agency or Commercial Entity
3. Brief Description of Work/Services provided, the results achieved, and the Relevance to the requirements herein
4. Point of Contact with Current Phone Number and E-Mail Address
5. Date of Contract Award
6. Period of Performance
7. Initial and Current Contract Value, and the Extent of Subcontracting.

For each contract, provide a narrative account of the work performed and include the following elements:

- Description of the methodology, tools, and processes utilized in performing the work
- Adherence to project schedule and cost
- Problems encountered and corrective actions taken

Vendors that are newly formed entities or otherwise lack relevant prior contracts will be given a neutral rating for past performance. The requested past performance shall not be older than three (3) years from the issue date of the solicitation. The Government reserves the right to contact other sources to obtain information on the vendor's past performance.

References can include both Government and commercial contracts and subcontracts.

Factor 3 - Price

The vendor shall provide pricing in accordance with Attachment A-Schedule of Items and Prices.

Vendors are required to provide a unit price for all items. A zero dollar figure (\$0.00) unit price means the vendor will provide the service or supply at no charge to the Government.

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NOTE: Unit prices left blank or annotated with something other than a dollar figure will be considered UNACCEPTABLE and the Quote may be rejected without any further consideration.
(End of Provision)

2. FAR 52.212-2 EVALUATION-COMMERCIAL ITEMS (OCT 2014)

a. Based on the technical management approach, past performance, and price, NOAA will choose the vendor that NOAA determines to be the best value. NOAA reserves the right to award on initial quotations without negotiations. NOAA also reserves the right not to make any awards under the RFQ if it determines that to be in the best interests of the Government. Technical Management Approach is the most important factor. Technical Management Approach combined with Past Performance is significantly more important than Price.

1. Technical Management Approach: The Vendor's Technical Management Approach will be evaluated to determine if the submission demonstrates an understanding to perform the requirements of the Performance Work Statement (PWS).

2. Past Performance will be evaluated to determine the relevancy to the PWS and the quality of work performed.

3. Price will be evaluated for reasonableness. The total evaluated price per CLIN will be calculated by multiplying the estimated quantity by the vendor quoted rate. This method will determine each CLIN's Total Extended Price. Pricing per attachment will be determined by the summation of all CLIN's Total Extended Price for that worksheet.

Although price is the not the most important evaluation factor, it has the potential to become more significant during the evaluation process. The degree of importance of price will increase with the degree of equality of the submissions in relation to the other factors on which selection is to be based. The importance of price will also increase when a vendor's price is so significantly high as to diminish the value to the Government that might be gained under the other aspects of the submission. If, at any stage of the evaluation, all vendors are determined to have submitted equal, or virtually equal, non-price submissions, price could become the factor in determining which vendor will receive the award.

b. Options. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of the options shall not obligate the Government to exercise the options.

c. Reserved.

(End of provision)

3. FAR 52.217-5 EVALUATION OF OPTIONS (JULY 1990)

Except when it is determined in accordance with FAR 17.206(b) not to be in the Government's best interests, the Government will evaluate offers or quotations for award purposes by adding the total price for all options to the total price for the basic requirement to determine the total evaluated price. This includes options under FAR clause 52.217-8, Option to Extend Services, which applies to this solicitation. Evaluation of options will not obligate the Government to exercise the option(s).

(End of provision)

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4. CAR 1352.215-72 INQUIRIES (APR 2010)

Vendors must submit all questions concerning this solicitation in writing to Amy McLiverty, Contract Specialist, at **Amy.L.McLiverty@noaa.gov**. Questions should be received no later than **March 25, 2020, 12:00PM Eastern**. Any responses to questions will be made in writing, without identification of the questioner, and will be included in an amendment to the solicitation. Even if provided in other form, only the question responses included in the amendment to the solicitation will govern performance of the contract.

5. FAR 52.233-2 SERVICE OF PROTESTS (SEP 2006)

(a) Protests, as defined in section 31.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer:

U.S. Department of Commerce
National Oceanic & Atmospheric Administration
Eastern Acquisition Division
ATTN: Jana Kolb, Contracting Officer
PHONE: 757-441-3344

by obtaining written and dated acknowledgment of receipt from:

U.S. Department of Commerce
Contract Law Division, Office of the General Counsel
Herbert C. Hoover Building
14th Street and Constitution Avenue, N.W., Room 5893
Washington, DC 20230
ATTN: James Rhodes, Esquire
FAX: 202-482-5858

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of Provision)

6. CAR 1352.233-70 AGENCY PROTESTS (APR 2010)

a) An agency protest may be filed with either: (1) The contracting officer, or (2) at a level above the contracting officer, with the appropriate agency Protest Decision Authority. *See* 64 FR 16,651 (April 6, 1999).

(b) Agency protests filed with the Contracting Officer shall be sent to the following address:

U.S. Department of Commerce
National Oceanic & Atmospheric Administration
Eastern Acquisition Division
200 Granby Street, Suite 815
Norfolk, VA 23510
ATTN: Jana Kolb, Contracting Officer

(c) Agency protests filed with the agency Protest Decision Authority shall be sent to the following

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address:

National Oceanic & Atmospheric Administration
Eastern Acquisition Division
ATTN: Christine Jeffries, NOAA Fisheries Branch Chief
200 Granby Street, Suite 815
Norfolk, VA 23510

(d) A complete copy of all agency protests, including all attachments, shall be served upon the Contract Law Division of the Office of the General Counsel within one day of filing a protest with either the Contracting Officer or the Protest Decision Authority.

(e) Service upon the Contract Law Division shall be made as follows: U.S. Department of Commerce, Office of the General Counsel, Chief, Contract Law Division, Room 5893, Herbert C. Hoover Building, 14th Street and Constitution Avenue, NW., Washington, DC 20230. FAX: (202) 482-5858.

(End of clause)

Attachments:

- 1) Attachment A-Schedule of Items and Prices
- 2) Attachment B-Accounting System Questionnaire
- 3) Attachment C-Department of Labor (DOL) Wage Determination 2015-4045, Revision No. 14, Dated 12/23/2019